

MUTUAL NON-DISCLOSURE AND CONFIDENTIALITY AGREEMENT

Business Assessment Methodology / Digital Product Exploration

Date: _____ 2026

1. Parties

This Mutual Non-Disclosure and Confidentiality Agreement (the “Agreement”) is entered into between:

Party 1

AiForm Studio (Pty) Ltd (“AiForm”), a company
incorporated in the Republic of South Africa.

Party 2

Shime R. E. Rammego (“Rammego”).

Each is a “Party” and together they are the “Parties”.

2. Purpose

The Parties wish to explore a potential engagement concerning the assessment, mapping, prototyping, design and/or development of a digital system based on Rammego’s business assessment methodology and intellectual framework (the “Purpose”). In doing so, either Party may disclose Confidential Information to the other.

3. Confidential Information

“Confidential Information” means non-public information disclosed by or on behalf of a Party, whether orally, visually, electronically, in writing or in any other form, that is identified as confidential or that a reasonable person would understand to be confidential given its nature and the circumstances of disclosure.

It includes, without limitation: methodologies, frameworks, assessment criteria, scoring or decision logic, questions, processes, know-how, business models, commercial plans, research, data, designs, specifications, software concepts, source code, technical architecture, prototypes, documentation, customer or supplier information, pricing, financial information, and notes or analyses derived from such information.

For clarity, Rammego’s business assessment methodology, including its structure, logic, criteria, questions, scoring, sequencing, interpretations and associated know-how disclosed for the Purpose, will be treated as Confidential Information whether or not each item is separately marked confidential.

4. Mutual Confidentiality Obligations

The receiving Party must keep the disclosing Party’s Confidential Information confidential and use reasonable safeguards to protect it.

The receiving Party may use Confidential Information only for the Purpose and not for its own independent commercial advantage or for any unrelated purpose.

The receiving Party may disclose Confidential Information only to its employees, contractors, professional advisers or service providers who reasonably need it for the Purpose and who are subject to confidentiality obligations no less protective in substance than those in this Agreement.

Neither Party may disclose the other Party’s Confidential Information to any other person without prior written consent, except where disclosure is required by law, regulation or valid legal process. Where legally permitted, the receiving Party must give prompt notice before such compelled disclosure.

5. Exclusions

The confidentiality obligations do not apply to information that the receiving Party can demonstrate: (a) was lawfully known to it without restriction before disclosure; (b) becomes public through no breach of this

Agreement; (c) is lawfully received from a third party without a duty of confidentiality; or (d) is independently developed without use of or reference to the disclosing Party's Confidential Information.

6. Pre-existing Intellectual Property

Each Party retains all right, title and interest in intellectual property, materials, methodologies, technology, know-how and other assets owned, created or developed by that Party before the engagement or independently of the other Party's Confidential Information ("Pre-existing IP"). Nothing in this Agreement transfers ownership of Pre-existing IP or grants a licence except the limited right to use Confidential Information for the Purpose.

Without limiting the above, Rammego retains ownership of his pre-existing business assessment methodology and intellectual framework. AiForm retains ownership of its pre-existing and independently developed software, reusable code, components, libraries, templates, design systems, development methods, tools, workflows, know-how and general technical capability.

7. No Independent Use or Commercialisation of Rammego's Methodology

AiForm will not reproduce, adapt, productise, license, sell, disclose, use to build a competing product, or otherwise commercialise Rammego's Confidential Information or methodology independently of the contemplated engagement without Rammego's prior written consent. This clause does not prevent AiForm from continuing to use its own Pre-existing IP, general skills, experience, ideas and know-how, provided that doing so does not disclose, reproduce or derive from Rammego's Confidential Information.

8. New Work and Future Development Agreement

This Agreement does not determine ownership of software, prototypes, designs, reports, specifications or other deliverables that may later be created specifically for the project. Any development work, fees, licences, assignment of rights, usage rights and ownership of project deliverables will be dealt with expressly in a separate written proposal, statement of work and/or development agreement before substantive paid development begins.

9. Personal Information and Security

Where information exchanged for the Purpose includes personal information, each Party will process and safeguard that information in accordance with applicable South African data-protection law, including the Protection of Personal Information Act 4 of 2013 (POPIA), to the extent applicable.

10. Return or Destruction

On written request, the receiving Party will, within a reasonable period, return or securely destroy the disclosing Party's Confidential Information in its possession or control, except for copies required by law or retained in routine secure backups or professional records. Any retained Confidential Information remains subject to this Agreement.

11. No Obligation to Proceed; No Warranty

Neither Party is obliged by this Agreement to enter into a commercial engagement, incur expenditure or proceed with development. Confidential Information is provided for evaluation and discussion, and neither Party makes a warranty as to its completeness or accuracy unless expressly agreed in a later written agreement.

12. Term and Survival

This Agreement starts on the date of the last signature and continues for three (3) years, unless replaced or terminated by written agreement. The confidentiality and restricted-use obligations relating to Confidential Information disclosed during that period survive for five (5) years after termination or expiry. In respect of information that qualifies as a trade secret or remains inherently confidential, those obligations continue for so long as the information lawfully remains a trade secret or confidential.

13. Remedies

The Parties acknowledge that unauthorised use or disclosure of Confidential Information may cause harm that is not adequately remedied by damages alone. A Party may seek appropriate urgent or injunctive relief, in addition to any other remedies available in law.

14. Governing Law and Jurisdiction

This Agreement is governed by the laws of the Republic of South Africa. The Parties will first attempt in good faith to resolve any dispute through direct discussion. If a dispute cannot be resolved, either Party may approach a court of competent jurisdiction in South Africa.

15. General

This Agreement records the entire understanding between the Parties regarding confidentiality for the Purpose and supersedes prior discussions on that subject. Any amendment or waiver must be in writing and agreed by both Parties. If any provision is unenforceable, the remaining provisions continue in effect. No failure or delay in exercising a right constitutes a waiver. This Agreement may be signed in counterparts and by electronic signature.

16. Signatures

By signing below, each Party confirms that it has read, understood and agrees to be bound by this Agreement.

For AiForm Studio (Pty) Ltd

Name: Thabiso Eric Motaung

Capacity: Authorised Representative

Signature: _____

Date: _____

For Shime R. E. Rammego

Name: Shime R. E. Rammego

Capacity: _____

Signature: _____

Date: _____

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